

25CV01450 Keypoint Credit Union v. Stephen Brucker

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-09-16

Motion: Motion of Plaintiff Keypoint Credit Union to Set Aside Dismissal and Enter Judgment Pursuant to Code of Civil Procedure Section 664.6

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Tentative Ruling: Keypoint Credit Union v. Stephen Brucker

Case Number

25CV01450

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 09/16/2026 - 10:00

Nature of Proceedings

Motion of Plaintiff Keypoint Credit Union to Set Aside Dismissal and Enter Judgment Pursuant to Code of Civil Procedure Section 664.6

Tentative Ruling

For Plaintiff Keypoint Credit Union: Laura M. D'Anna, Nelson Ventura, Patenaude & Felix A.P.C.

For Defendant Stephen Brucker: Self Represented

RULING

For all reasons discussed herein, the motion to enter judgment pursuant to Code of Civil Procedure section 664.6 is granted in the amount of \$10,563.75.

This action commenced on March 10, 2025, by the filing of the complaint by plaintiff Keypoint Credit Union against defendant Stephen Brucker for Breach of Written Contract.

As alleged in the complaint, defendant entered into a Borrower Agreement and Loan Agreement and Promissory Note, with plaintiff's predecessor in interest, for a \$22,000.00 loan on which defendant was to make monthly installment payments for principal and interest accrued. Defendant defaulted under the terms of the contract by failing to make all required payments. After all payments by defendant have been applied, there remains \$14,825.75 due and owing.

On July 30, 2025, the parties filed a stipulated settlement agreement

Arguing that defendant defaulted on the agreement, plaintiff now moves to set aside the dismissal and enter judgment pursuant to Code of Civil Procedure section 664.6. The motion was timely served on defendant via first class mail.

Defendant has not filed opposition or any other response to the motion.

Analysis

"[T]he methods for enforcing a settlement are a motion for summary judgment, a separate suit in equity, an amendment to the pleadings in the settled action or a motion under [Code of Civil Procedure] section 664.6." (Reed v. United Teachers Los Angeles (2012) 208 Cal.App.4th 322, 338.)

"Code of Civil Procedure section 664.6 provides a summary, expedited procedure to enforce settlement agreements." (Sayta v. Chu (2017) 17 Cal.App.5th 960, 962, fn. omitted.) "Even though it is not exclusive, Code of Civil Procedure section 664.6 is intended to provide a means for enforcing an agreement that requires nothing more than a single motion." (In re Marriage of Woolsey (2013) 220 Cal.App.4th 881, 898.) "The entry of a judgment pursuant to section 664.6 enables parties to enforce a settlement agreement without having to file a separate lawsuit." (DeSaulles v. Community Hospital of Monterey Peninsula (2016) 62 Cal.4th 1140, 1155.)

Code of Civil Procedure section 664.6 provides:

"(a) If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

"(b) For purposes of this section, a writing is signed by a party if it is signed by any of the following:

"(1) The party.

"(2) An attorney who represents the party.

"(3) If the party is an insurer, an agent who is authorized in writing by the insurer to sign on the insurer's behalf.

"(c) Paragraphs (2) and (3) of subdivision (b) do not apply in a civil harassment action, an action brought pursuant to the Family Code, an action brought pursuant to the Probate Code, or a matter that is being adjudicated in a juvenile court or a dependency court.

“(d) In addition to any available civil remedies, an attorney who signs a writing on behalf of a party pursuant to subdivision (b) without the party’s express authorization shall, absent good cause, be subject to professional discipline.”

“A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement.” (Hines v. Lukes (2008) 167 Cal.App.4th 1174, 1182.) “If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. [Citation]” (Id. at pp. 1182-1183.)

A court hearing a motion brought under section 664.6 may “receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment”, but may not “create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.” (Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 810.)

The Agreement includes the following provisions:

The parties agree and acknowledge that Judgment shall be entered in favor of plaintiff and against defendant for the principal amount of \$14,825.75, plus costs in the amount of \$508.00, less credits for any and all amounts paid to plaintiff by defendant. (Agreement, ¶ 1.) The entry of judgment is stayed and no judgment shall be entered provided that defendant timely and properly makes all payments as the agreement provides. (Agreement, ¶ 2.)

Defendant agrees that there is \$14,825.75 due and owing to plaintiff due to defendant’s breach of the credit agreement/loan agreement. (Agreement, ¶ 5.) Defendant agrees to pay plaintiff in monthly installments of \$397.50, with the final payment due on April 16, 2027. (Ibid.) Defendant also agreed to pay plaintiff’s first appearance fee of \$370.00. (Ibid.)

Plaintiff and defendant agreed that if defendant made each installment payment when due, defendant would be entitled to a discount of \$5,285.75 on or after April 16, 2027. (Agreement, ¶ 6.)

“If Defendant fails to make full and timely payment of any of the specified payments or otherwise fails to abide by the provisions set forth in this Stipulated Settlement Agreement, Defendant will not be entitled to the stated discount, Defendant will remain liable on the full stipulated settlement balance, and Plaintiff will not deem the stipulated settlement satisfied. Enforcement of the full stipulated settlement amount can be enforced pursuant to CCP 664.6. In the event DEFENDANT fails to make any payment by its respective due date, and upon Declaration or formal noticed motion where required by PLAINTIFF or Plaintiff’s Attorney regarding said default, the Court shall set aside the dismissal without prejudice, resume jurisdiction over the matter, and enter a Judgment in favor of PLAINTIFF and against DEFENDANT as agreed in Paragraph 1 of this Stipulated Settlement Agreement, less any amount Defendant has paid on the stipulated settlement balance.” (Agreement, ¶ 10.)

The agreement is signed by counsel for plaintiff as well as by defendant.

“A settlement agreement is a contract, and the legal principles which apply to contracts generally apply to settlement contracts.” (Ibid.) “In order for acceptance of a proposal to result in the formation of a contract, the proposal “ ‘must be sufficiently definite, or must call for such definite terms in the acceptance, that the performance promised is reasonably certain.’ ” [Citation.] A proposal “ ‘cannot be accepted so as to form a contract unless the terms of the contract are reasonably certain. [¶] The terms of a contract are reasonably certain if they provide a basis for determining . . . the existence of a breach and for giving an appropriate remedy.’ ” [Citation.] If, by contrast, a supposed “ ‘contract’ ” does not provide a basis for determining what obligations the parties have agreed to, and hence does not make possible a determination of whether those agreed obligations have been breached, there is no contract. (See, e.g., 1 Williston on Contracts (4th ed. 1990, Lord) § 4:18, p. 414 [“It is a necessary requirement that an agreement, in order to be binding, must be sufficiently definite to enable the courts to give it an exact meaning.”]; see also Civ. Code § 3390, subd. 5 [a contract is not specifically enforceable unless the terms are “ ‘sufficiently certain to make the precise act which is to be done clearly ascertainable.’ ”])” (Id. at pp. 811-812.)

The agreement contains definite terms that are reasonably certain. The parties entered into an enforceable contract, and the court retained jurisdiction pursuant to Code of Civil Procedure section 664.6.

Defendant defaulted on the terms of the agreement. (D'Anna decl., ¶ 9.) Defendant has paid \$4,770.00, but on May 15, 2026, ceased making payments toward the settlement. (Ibid.) After application of the payments, defendant owes \$10,563.75 pursuant to the terms of the agreement. (D'Anna decl., ¶¶ 10, 11.)

The motion will be granted.

Judges

Judge Thomas Anderle

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